

HOUSE No. 1578

The Commonwealth of Massachusetts

PRESENTED BY:

Steven George Xiarhos and Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to background checks for individuals in Massachusetts housing programs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/15/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/15/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>2/11/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/25/2025</i>

HOUSE No. 1578

By Representatives Xiarhos of Barnstable and Jones of North Reading, a petition (accompanied by bill, House, No. 1578) of Steven George Xiarhos, Bradley H. Jones, Jr., and Joseph D. McKenna relative to background checks for individuals in Massachusetts housing programs. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to background checks for individuals in Massachusetts housing programs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. For the purposes of this Act, the following terms shall have the following
2 meanings:-

3 “Housing Program”, any state-funded, federally-funded, or state-subsidized program that
4 provides housing assistance, including but not limited to public housing, rental assistance
5 programs, and transitional housing services.

6 “Background Check”, a comprehensive review of an individual’s personal, criminal, and
7 financial history, including but not limited to: criminal records at the state, federal, and
8 international levels; employment history; education verification; immigration or residency status;
9 financial history, including credit checks; presence on international or domestic criminal watch
10 lists.

“Applicant”, any individual applying for participation in a housing program, including the head of household and any adult members of the applicant’s household.

“Registry of Motor Vehicles Data”, all information maintained by the Massachusetts Registry of Motor Vehicles, including but not limited to driver’s license records, vehicle registrations, and identification card records.

SECTION 2. (a) All applicants seeking entry into any housing program within the Commonwealth shall be subject to a full and complete background check prior to acceptance.

(b) The background check shall be conducted by an approved and licensed entity that complies with federal, state, and local laws governing background investigations, including but not limited to the United States Fair Credit Reporting Act.

(c) The required background check shall include, but is not limited to: criminal history review, including state, national, and international records; verification of employment and education history; immigration and residency status verification through the Department of Homeland Security or its equivalent; review of financial history, including creditworthiness, if applicable to program eligibility criteria; social security number verification and identification validation; and, screening against state and federal sex offender registries and other public safety databases.

SECTION 3. (a) The Massachusetts Registry of Motor Vehicles shall provide full access to its database to all local, state, and federal law enforcement agencies upon request for the purpose of conducting background checks as required under this Act, assisting in criminal investigations and public safety efforts, and verifying identity and residency of individuals applying for housing programs or involved in law enforcement proceedings.

(b) Law enforcement agencies accessing data under this provision must adhere to all applicable state and federal privacy and data protection laws.

(c) The Registrar of Motor Vehicles shall establish secure systems to ensure proper tracking of data access and prevent unauthorized use.

SECTION 4. (a) Individuals with criminal convictions related to violent crimes, sexual offenses, fraud, or other serious offenses committed within the past 10 years may be deemed ineligible for housing program participation, subject to review by the administering agency.

(b) Immigration status shall be verified to ensure compliance with federal housing program requirements, where applicable.

(c) Exceptions or appeals of eligibility under this section may be granted under limited circumstances, at the discretion of the administering housing agency, upon demonstration of rehabilitation, mitigating circumstances, or compelling need.

SECTION 5. (a) All information obtained through the background check process and data access under this Act shall be kept confidential and used solely for the purposes outlined in this Act.

(b) Administering agencies and law enforcement must establish secure systems for the storage and handling of sensitive information.

(c) Background check and data access procedures under this Act shall comply with all applicable state and federal privacy laws, including but not limited to the General Data Protection Regulation (GDPR) for international applicants.

SECTION 6. (a) The Massachusetts Executive Office of Housing and Livable
Communities shall be responsible for implementing the provisions of this Act.

(b) The Massachusetts Registry of Motor Vehicles shall work in coordination with law
enforcement agencies to develop protocols for secure data access.

(c) The Executive Office of Housing and Livable Communities and the Registry of Motor
Vehicles shall conduct annual audits to ensure compliance with the provisions of this Act.

SECTION 7. (a) Any agency or entity administering housing programs or managing data
found in violation of this Act shall be subject to penalties, including fines, suspension of funding,
or other sanctions as determined by the Executive Office of Housing and Livable Communities
or other applicable authorities.